

*Applied Underwriters Captive Risk Assurance Co.* (2018) 30 Cal.App.5th 970, 977 (*Luxor Cabs*.) Arbitration should be compelled unless it can be said with assurance that the arbitration clause in question is not susceptible to an interpretation covering the asserted dispute. (*EFund Capital Partners v. Pless* (2007) 150 Cal.App.4th 1311, 1320-1321.) The party seeking arbitration bears the burden of proving the existence of an arbitration agreement by a preponderance of the evidence, and the party opposing arbitration bears the burden of proving by a preponderance of the evidence any defense. (*Ibid.*)

FORD FAIRFIELD presents evidence that an arbitration agreement exists between it and Plaintiff as part of the retail sales installment contract by which Plaintiff obtained the Vehicle from FORD FAIRFIELD. (Declaration of Karyn Ihara in Support of Motion to Compel Arbitration at ¶ 2, Exhibit 1.) The agreement covers “[a]ny claim or dispute...between you [Plaintiffs] and us [FORD FAIRFIELD]...which arises out of or relates to your credit application, purchase or condition of this vehicle, this contract or any resulting transaction or relationship.” (*Ibid.*)

The arbitration agreement covers Plaintiff’s causes of action against FORD FAIRFIELD. The lemon law claims Plaintiff asserts arise from the purchase and condition of the Vehicle. Plaintiff does not argue against the existence or application of the arbitration agreement, even in his untimely opposition.

**Conclusion.** FORD FAIRFIELD’s functionally unopposed motion to compel arbitration is granted. Plaintiff’s claims against FORD FAIRFIELD are ordered stayed pending completion of arbitration.

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**MARSHALL TUBBS vs. COUNTY OF SOLANO GENERAL SERVICES  
DEPARTMENT; ET AL.  
Case No. CU25-09311**

Demurrer by COUNTY OF SOLANO GENERAL SERVICES DEPARTMENT to  
Complaint

**TENTATIVE RULING**

In general, as a prerequisite to the filing of FEHA-based causes of action, the plaintiff must first file a charge with the DFEH (California Dept. of Fair Employment and Housing) or in more recent times the California Civil Rights Department (CRD), and then upon issuance of a right-to-sue letter, file within the applicable time a civil complaint alleging those FEHA-based causes of action. Government Code §12960; *Kim v. Konad USA Distribution, Inc.* (2014) 226 Cal.App.4th 1336, 1345 [“Before filing a civil action alleging FEHA violations, an employee must exhaust his or her administrative remedies with DFEH . . . Exhaustion includes the timely filing of administrative complaints addressing the claims and parties at issue, as well as the procurement of right-to-sue letters”]; *Blum v. Superior Court* (2006) 141 Cal.App.4th 418,

422 [similar description of requirement of exhaustion of administrative remedies before bringing FEHA-based causes of action]; Medix Ambulance Serv. v. Superior Court (2002) 97 Cal.App.4<sup>th</sup> 109, 116 [same].

Plaintiff's complaint claimed that the charge he filed with the EEOC, and the EEOC's subsequently issued right-to-sue letter served to exhaust his administrative remedies.

California cases uniformly reject this argument. Foroudi v. The Aerospace Corp. (2020) 57 Cal.App.5<sup>th</sup> 992, 1001 ["the exhaustion of EEOC remedies does not satisfy the exhaustion requirements for state law claims"]; Martin v. Lockheed Missiles & Space Co. (1994) 29 Cal.App.4<sup>th</sup> 1718, 1726-1727 [rejecting the plaintiff's "dual filing agreement" argument that an EEOC charge and right-to-sue letter sufficiently exhausts as to FEHA claims, and finding that a DFEH right-to-sue letter is a requirement before filing a complaint containing FEHA causes of action].

Plaintiff's opposition declaration attached a copy of a right-to-sue letter from the CRD, dated March 19, 2025, which confirmed that the charge Plaintiff had filed with the EEOC "is being dual filed with the [CRD] by the [EEOC]", with EEOC responsible for investigating, although CRD was immediately confirming Plaintiff's right to file a private lawsuit in state court, "within one year from the date of this notice."

Plaintiff's complaint, filed on October 10, 2025, was filed within seven months of the date of the CRD right-to-sue letter.

While Plaintiff's complaint does not contain any allegations about the CRD's right-to-sue letter, it can easily be amended to do so.

The court therefore sustains the demurrer by COUNTY OF SOLANO GENERAL SERVICES ("GS") to causes of action 1-4 of Plaintiff's complaint, all FEHA-based causes of action, with 30 days leave to file a first amended complaint to allege the CRD right-to-sue letter and reallege these four causes of action.

As to causes of action five through seven (5<sup>th</sup> cause of action for constructive discharge in violation of public policy, 6<sup>th</sup> cause of action for intentional infliction of emotional distress, and 7<sup>th</sup> cause of action for negligent supervision, hiring and retention), exhaustion of or excuse from compliance with a different administrative remedy must be alleged.

For any claim for "money or damages" against a public entity, before filing the complaint, the plaintiff must first timely present a government claim to the entity, and wait for it to be rejected or deemed rejected.

Government Code sections 905 and 945.4 . . . require, as a condition precedent to bringing suit against a local public entity, the timely presentation to the defendant of a written claim and the rejection of the claim in whole or in part . . .

Where compliance with the Tort Claims Act is required, the plaintiff must allege compliance or circumstances excusing compliance, or the complaint is subject to general demurrer. ( *Dujardin v. Ventura County Gen. Hosp.* (1977) 69 Cal.App.3d 350, 355 [138 Cal.Rptr. 20]; *San Leandro Police Officers Assn. v. City of San Leandro* (1976) 55 Cal.App.3d 553, 559 [127 Cal.Rptr. 856]; see *Van Alstyne*, Cal. Government Tort Liability Practice (Cont.Ed.Bar 1980) § 5.77, p. 569, hereafter cited as *Van Alstyne*.) *Snipes v. City of Bakersfield* (1983) 145 Cal.App.3d 861, 865.

FEHA causes of action are exempt from the claims presentation requirement, as they are subject to their own pre-filing notice and investigation process.

[T]he purposes and procedures of the FEHA demonstrate a legislative intent that actions against governmental entities brought under the FEHA are to be excepted from the general requirements of the Tort Claims Act. The FEHA constitutes a comprehensive scheme for combating employment discrimination, with specific time limitations related to the remedies provided. Id. at 865.

The pre-filing notice and investigation process for FEHA claims includes the option that DFEH/CRD pursue administrative remedies on behalf of the claimant, although it often instead simply issues a right-to-sue letter to the claimant.

In order to bring an action under FEHA, an individual is required to exhaust his administrative remedies under the act. ( *Commodore Home Systems, Inc. v. Superior Court*, supra, 32 Cal.3d 211, 214, 218; *Hollon v. Pierce* (1967) 257 Cal.App.2d 468, 475-476 [64 Cal.Rptr. 808].) It was the intent of the Legislature to provide an administrative forum for eliminating unlawful employment practices "by conference, conciliation, and persuasion." ( Gov. Code, § 12963.7, subd. (a).) ". . . [There] is no right to sue, even after conciliation breaks down, unless the Department fails to file an accusation before the Commission. To that extent the availability of court remedies remains within the Department's control. [Also], the compliance structure of the FEHA encourages cooperation in the administrative process. While that process continues the Department acts on the victim's behalf and absorbs costs of pursuing his claim. Court action inevitably is speculative, and the FEHA makes civil suit the claimant's sole responsibility." ( *Commodore Home Systems, Inc. v. Superior Court*, supra, 32 Cal.3d at p. 218.) Id. at 866-867.

Thus, FEHA causes of action are exempt from the government claims procedure, because of the special other prior notice procedure established for FEHA claims.

The above provisions demonstrate a legislative intention to exempt actions under the FEHA from the general Tort Claims Act requirements. The procedural guidelines and the time framework provided in the FEHA are special rules for this particular type of claim which control over the general rules governing claims

against governmental entities. The FEHA not only creates a statutory cause of action, but sets out a comprehensive scheme for administrative enforcement, emphasizing conciliation, persuasion, and voluntary compliance, and containing specific limitations periods. (See Tobriner, California FEPC (1965) 16 Hastings L.J. 333.) Id. at 868.

FEHA causes of action are also deemed to be primarily for injunctive relief, with money damages being "incidental" to that primary relief.

[T]he claim is not for "money or damages" within Government Code sections 905 and 945.4, and therefore not subject to demurrer for failure to comply with the Tort Claims Act. The notice of claim provisions do not apply to an action which seeks principally injunctive relief for employment discrimination. The action under the FEHA basically is nonpecuniary, the claims for damages and back pay being incidental to the claim for injunctive relief.

The general scope of the Tort Claims Act notice-of-claim provisions is limited to "claims for money or damages . . . ." ( Gov. Code, §§ 905, 905.2.) This language exempts actions seeking specific relief other than money or damages, such as injunctive or declaratory relief, and certain actions in mandamus. (See Van Alstyne, *supra*, § 5.7, pp. 436-437, § 5.23, pp. 460-462; see also Gov. Code, § 814: "Nothing in this part affects . . . the right to obtain relief other than money or damages against a public entity . . . .") Because appellant's complaint clearly states a cause of action for injunctive relief, the general demurrer was sustained improperly. (See *Minsky v. City of Los Angeles*, *supra*, 11 Cal.3d 113, 121, fn. 12; *L. A. Brick etc. Co. v. City of Los Angeles* (1943) 60 Cal.App.2d 478, 486 [141 P.2d 46].)

Furthermore, an action for specific relief does not lose its exempt status solely because incidental money damages are sought. (See *People v. City of Los Angeles* (1958) 160 Cal.App.2d 494, 508 [325 P.2d 639]; *L. A. Brick etc. Co. v. City of Los Angeles*, *supra*, 60 Cal.App.2d 478, 486, cited in *Minsky*, *supra*, 11 Cal.3d at p. 121, fn. 12.) Id. at 869-870.

The 5<sup>th</sup> through 7<sup>th</sup> causes of action are not FEHA causes of action, and thus are subject to the government claims presentation requirement, not the DFEH/CRD charge filing requirement.

Plaintiff's complaint does not allege facts showing compliance with or excuse from the government claims presentation requirement.

The court therefore sustains GS's demurrer to the non-FEHA causes of action (5<sup>th</sup> cause of action for constructive discharge in violation of public policy, 6<sup>th</sup> cause of action for intentional infliction of emotional distress, and 7<sup>th</sup> cause of action for negligent supervision, hiring and retention) for failure to allege facts showing compliance with or excuse from the government claim presentation requirement.

Plaintiff's opposition declaration claims that on October 2, 2025, via email he sent written notice of his claims against the county "by email to the civil division of the Solano County Superior Court . . . , with a copy to the Clerk of the Board of Supervisors . . . " which "included a detailed formal complaint describing the workplace harassment, retaliation, discrimination, and constructive discharge I experienced while employed with the County of Solano General Services Department, along with the names of the responsible parties", and received from the Board of Supervisors "an automated acknowledgement confirming my correspondence had been received and forwarded to the appropriate office for review".

The declaration attached a copy of an email Plaintiff claims to have sent to the Board of Supervisors (and the court) to accompany what he called a Board of Supervisors complaint letter. But no copy of that "detailed letter" was attached anywhere to Plaintiff's declaration.

Even if the detailed letter had been attached, per the County's website instructions for presenting a government claim, email transmission of it to the Board of Supervisors may not have been sufficient, nor did Plaintiff wait for the claim to be rejected or deemed rejected before filing the complaint (as the letter was sent only about a week before the filing of the complaint).

While it is not clear to the court that Plaintiff can successfully allege facts sufficient to show compliance with or excuse from the government claims presentation requirement, in an abundance of caution, the court sustains GS's demurrer to these three non-FEHA causes of action, with 30 days leave to amend.

Thus, the court sustains GS's demurrer to the entirety of Plaintiff's complaint, with 30 days leave for Plaintiff to file a first amended complaint, to reallege any or all of the FEHA causes of action and the non-FEHA causes of action.

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**FRANCISCO ARRIAGA; ET AL. vs. SUTTER VALLEY HOSPITALS; ET AL.**  
**Case No. CU25-09439**

SUTTER SOLANO's Demurrer to First Amended Complaint

**TENTATIVE RULING**

Defendant SUTTER VALLEY HOSPITALS d.b.a. SUTTER SOLANO MEDICAL CENTER ("SUTTER SOLANO") demurs to the fourth cause of action, for dependent adult neglect, within Plaintiffs FRANCISCO ARRIAGA and ARACELI ARRIAGA's first amended complaint. Summarized, Plaintiffs allege that their son Roberto Carlos Arriaga Soria ("Decedent") went to SUTTER SOLANO's emergency room on October 14, 2024, nude and suffering from hypoglycemia, hypothermia, and an altered mental state. SUTTER SOLANO did not perform appropriate diagnostic tests on Decedent and